



Triple test, adrift

The Supreme Court should not have discarded a workable test on ‘industry’

On August 20, a nine-judge Bench of the Supreme Court of India delivered a judgment on the correctness of the ruling in *Bangalore Water Supply and Sewerage Board vs A. Rajappa (BWSSB)* (1978). In that judgment, Justice V.R. Krishna Iyer had laid down what was called the “Triple Test” on what counts as an “industry” under Section 2(j) of the Industrial Disputes (ID) Act, 1947 (ID Act). Three conditions were to be met for an industry – a systematic activity, employer-employee cooperation, and production/distribution of goods and services to satisfy human wants other than those that are purely religious or spiritual. Profit motive was irrelevant; what mattered in this determination was the nature of the activity, and only “sovereign functions” stood outside it. A five-judge Bench in *State of U.P. vs Jai Bir Singh* (2005) raised a doubt about this definition and a seven-judge Bench sent it to the current nine-judge Bench. This Bench, led by Chief Justice of India Surya Kant, left the Triple Test standing for all pending disputes under the older ID Act, which was repealed on November 21, 2025 when the Industrial Relations Code, 2020 (IRC) came into force. However, a majority of the nine-judge Bench also ruled that *BWSSB* will not be a “sheet anchor” for interpreting Section 2(p) of the IRC. That is a mistake. In her dissenting opinion, Justice B.V. Nagarathna held that the reference itself was unnecessary and that the Triple Test requires no interference – a view shared by three other judges. Her reasoning is compelling. Since 1978, and particularly after the liberalisation and privatisation reforms of 1991, a far higher number of workers have moved to the private sector, out of the security of public employment. An expansive definition of industry, as entailed in the Triple Test, is therefore even more necessary now as a bulwark for the worker.

Yet, Section 2(p) of the IRC does not move away from Justice Krishna Iyer’s Triple Test formula in *BWSSB* and reproduces much of its essence. It is therefore difficult to understand why *BWSSB* has to be set aside when Section 2(p) itself comes up for interpretation. The Triple Test was also not merely a pro-labour device. An expansive definition of industry brought with it not just the ID Act’s protections but also its restrictions – for instance, a regulated route to retrenchment and closure for the employer, and a bar on workers striking at will. In essence, the Triple Test allowed for industrial peace rather than worker welfare alone. Severing that principle from the IRC, as the majority has done, cuts away the interpretive framework that allowed such disputes to be resolved. With the essence of the Triple Test carried into Section 2(p), it is now incumbent upon courts and tribunals to ensure that a change of statute is not read as a change of intent even if the majority judgment has removed the anchor to do so.

Core concerns

The Indian economy looks set for tough times ahead

The slowdown in the growth of India’s core industrial sectors in July was not surprising, with other indicators predicting easing demand conditions as well. Growth in the index of core industries (ICI) slowed to 5.4% in July from 6% in the previous month. This was in keeping with the Manufacturing Purchasing Managers’ Index, which in July eased to its lowest level since August 2021 due to weak domestic demand conditions. While July’s growth in the ICI was the second-highest growth rate in the last seven months, the data nevertheless highlight some concerning aspects of the Indian economy. The first has to do with the fact that a large part of even this slower growth seems to be based on a statistical low base effect. The coal sector, for example, grew at an 11-month high of 7.6% in July, but this was based on a contraction of 12.3% in July of last year. Similarly, the refinery products sector snapped a three-month streak of contraction to grow at 2.7%, but this too was based on a contraction in July 2025. The iron ore sector, however, grew at a very robust 29.5%, albeit slower than a blistering 44.5% in June. This seems heartening regardless of the contractions of 16.4% and 7.1% in June and July of last year, respectively. But the steel sector slowed drastically in July to 2.9% from 5.6% in June and 15.7% in July of last year.

The domestic crude oil and natural gas sectors have been lasting drags on the economy. Both have contracted continuously for at least the last 14 months for which the new series of the ICI has data. India’s crude oil imports rose 13.3% in volume terms in July, while Liquefied Natural Gas (LNG) imports grew a more marginal 1.5%, showing that the economy’s appetite is being whetted from abroad. This external dependence is proving very expensive. High oil prices have meant that the crude oil import bill jumped 41% in July. The 100% tariffs that the United States is preparing to levy on countries such as India that import Russian oil will once again burden Indian exporters. Moving to 20% ethanol-blending has not yet impacted oil imports materially. Within the ICI, the only two bright spots of the economy were the cement and electricity sectors. The electricity sector grew at a robust 9% in July, although this was slower than the two consecutive months of double-digit growth in May and June thanks to the prevalent heatwave conditions in many parts of the country. The cement sector sped up to 13.1%, a welcome acceleration. Such positive trends were few and far between. Overall, the Indian economy looks to be in for a period of slack demand, higher costs, and moderating growth.

Indian students rank among the top students almost anywhere in the world. The joke is that, from the womb to the afterlife, they are taught to study maths and science which serves them well throughout life. A report by Redseer says that India’s test-preparation market has been estimated at \$14.8 billion in FY26, projected to reach \$23-\$26 billion by FY30 (12%-15% CAGR), with around 2,00,000 coaching centres nationwide. There are 65 million students in classes 9-12, of whom around 27 million attend government schools. A 2025 National Statistical Office survey found that 27% of students were taking or had taken private coaching in the academic year (30.7% urban, 25.5% rural). Across datasets, coaching incidence is around 27%-30%, implying that 17 million to 20 million students in classes 9-12 participate in some form of test-prep coaching.

No single private platform has the capacity or curriculum breadth to serve as the sole national provider. PhysicsWallah, for example, has around 4.9 million paid online users – while the target population is 10 to 100 times larger. This needs to be built as a platform and network play, not a vendor contract.

Better learning, better outcomes

How can the government take the help of Artificial Intelligence (AI) to deliver a free coach and tutor to every Indian child? The objective should not be to bring down the private coaching industry but to improve the learning standards and examination outcomes of the last child in the line who today spends thousands of rupees on dubious coaching centres without achieving the necessary results. Bring the industry in as suppliers, or they will lobby against it and the reputational risk of failing completely, is high for the government to sustain.

We should not nationalise coaching. Build a public rail, private engines model: the state supplies the digital public infrastructure (identity, payments, discovery, data, credentialing) and aggregates demand; the private sector – star teachers, ed-tech firms, local tutors – supplies content and last-mile delivery shared by both. Government becomes the platform and market-maker, not the content producer. This is exactly how UPI beat closed payment apps and how the pen Network for Digital Commerce is attempting to beat closed commerce: unbundle the monopoly, open the protocol, let a thousand providers compete on an open network.

The Indian coaching industry charges high fees because it bundles four things that do not have to be bundled: content; doubt-solving/mentoring; peer group and discipline, a credible signal of quality. DPI lets us unbundle these and drive the marginal cost of the first two toward zero. This can be anchored in an existing centre of excellence such as Bodhan.ai at IIT Madras



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The government can create the digital infrastructure for every Indian child to access a free Artificial Intelligence (AI) tutor – which was the vision behind the Prime Minister’s call

(which has a ₹500 crore, five year government grant) or a similar National Payments Corporation of India (NPCI)-like body that needs to be created for education (a Section 8 not-for-profit steward).

Where it should begin

It should start with the National Eligibility cum Entrance Test (Undergraduate), or NEET, and the Joint Entrance Examination, the two most widely taken examinations in India. JEE/NEET are objective, machine-gradable, and high-volume. The content is already freely available on YouTube; what is scarce is a trusted, standardised rank signal and personalised doubt-solving.

An IIT professor who teaches students who have cleared JEE 30 years ago may not be the best option for teaching test prep. Today’s test prep skill and requirement is in a very different age, time, and pedagogy.

Government aggregates demand thereby drives down the customer acquisition cost for the private sector and owns the rails and the trust layer; the private sector and star teachers compete to deliver content and mentoring on an open network; the student owns the data and carries a voucher (optional). That is how you turn a \$15b payroll industry into free, plural, high-quality prep – without the state trying to become the teacher.

As with any private good using public rails, it will use Aadhaar/DigiLocker for student sign-up and to de-duplicate; APAAR ID to tie learning to the academic record. Along with this will be a curated content registry, an open catalogue where any accredited provider publishes lessons, problem sets, and mock tests against a standard syllabus taxonomy (NEET/JEE topic tree) and open metadata (language, difficulty, medium, accessibility tags). The government will set the taxonomy and standards for the content and ensure interoperability.

Content interoperability is the whole game – a student’s progress in one provider’s module must be portable to another’s. There shall be a discovery layer, a government-run reference app plus open APIs so third parties (including the DIKSHA app, state apps, even Google/YouTube) can surface the same content – multiple front ends, one network. For example, PhysicsWallah, Vedantu, Allen or Narayana could offer their material for free and charge for doubt-solving or premium sessions with ranked professors. IIT professors could also upload their lectures and be rated and ranked on the platform. Adaptive personalisation should be a core feature and as a network service, an open recommendation/diagnostic engine that routes say a weak-in-organic-chemistry student to the best-rated module on that topic, regardless of provider. These will be accompanied by a learning wallet and a progress ledger, a student-owned record of what they have studied,

mock scores, and mastery per topic, consent-gated through the DEPA/Account Aggregator pattern. The student – not the ed-tech firm – owns the data, which is the single biggest structural break from today’s walled-garden apps. Lastly, while the platform will be mostly free at the point of use, UPI-plumbed premium add-ons (live mentoring, graded assignments) can be micro-charged or voucher-funded, should the government wish to create a DBT-like e-Shiksha wallet. Deliberately thin the government software: The state builds protocols and a reference app; it does not try to build the best learning app. It will not win that race and should not try this. Government alone can aggregate the demand and credential the supply and outcomes – that is all it should do. It should auto-invite every registered Class 11-12 student through schools, CBSE/State boards, and the DIKSHA install base. The system should guarantee reach through free data-light streaming, downloadable content for low-bandwidth areas, and distribution through the five lakh-plus Common Service Centres and school computer labs for students without personal devices. Equity is the mandate – the ₹60,000 crore industry already serves the affluent; the gap is everyone else.

Government should publish open ratings and outcome data: publish, per provider and per module, how students who used it scored on official mocks and the real exam. Quality signal becomes objective, not marketing. This is the credential the coaching industry currently monopolises. Government alone can ensure independent accreditation of providers (content accuracy, no misleading claims), with delisting teeth. Further there should be a no-lock-in rule to ensure that providers cannot hold a student’s progress data hostage; portability is enforced at the protocol level.

Models on offer

There is no dearth of content, good and bad, on YouTube but where an AI tutor helps is in practice, doubt solving and adaptive personalisation, which only AI can do. There are good open-source models such as Gemma, which give a million tokens for about 20 to 30 cents or 10,000 tokens per day or 3.6 million tokens per year for just ₹100. Further, every AI minute is equivalent to 1,000 voice minutes of a human; frontier tech companies such as Meta and Google are paying star Kota teachers \$25 to \$30 per hour for commoditising their content. Further, their models will get trained on it and Generative Inference will do the rest on top of it.

We should not be delulu – as Gen Z would put it – government should not become the AI tutor itself. It should only enable the AI tutor through the blueprint given.

The views expressed are personal

The return of profanation as a new political language

In his work *Profanations*, Italian philosopher Giorgio Agamben observes how the act of profanation applies to the game of chess and children playing with household items as toys. For Agamben, profanation refers to removal or transfer of objects, places, animals, personalities or languages from the realm of sacred or restricted use to the common or ordinary use of people. Religion, state, political ideology, and marketplace are identified by him as the agents that make things sacred, removing them from common use and transferring them to a separate sphere. What chess does is profanation, converting wars or ancient divinatory rituals into a game, a playful activity.

The same thing happens when a child plays with a household object; they free or liberate it from its restricted use and open it up for a new purpose. These two textbook examples of desecration are best understood within the context of the recent student protest at Jantar Mantar.

The protest led by the Cockroach Janta Party (CJP) has sparked a national debate over what is “sacred” and “profane”, and what is “formal” and “informal” in Indian politics. It shows how students can desecrate a “sacred” and “invincible” political force through a measured act of profanation. Interestingly, labelling the movement “profane”, “informal”, or “violent” also serves as the ruling party’s best defence.

Admittedly, a fraction of the students used profanity, slurs and abusive slogans which were directed at the administration out of anger. No one can justify this. However, one must not ignore the instances of profanation in the protest expressed through informality, casualness, and fearlessness, which mainstream media labelled as “anarchism” and the “collapse of political civility”.

As anti-colonial strategy

Profanation as a mode of serious political intervention is not something new to Indian



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The recent student protest challenges political power through humour, informality, and profanation

politics. The Indian national movement has, at various times, resorted to such acts as a part of its core political strategy. Instead of violent means, the movement strategically employed non-cooperation, economic boycotts, and public burning of clothes made in England to strip away the authority, prestige and institutional power of the British Raj. In an act tantamount to profanation, some of its leaders publicly renounced awards and honorific titles conferred on them to show that no honours superseded their national sentiments.

Mahatma Gandhi sometimes used satiric language to ridicule the authority. To the question by a reporter about his unimpressive dressing while meeting King George V at Buckingham Palace in 1931, Gandhiji is reported to have remarked, “The king had enough on for both of us.” This was not at all a personal insult or an act of belittlement, but a powerful political statement highlighting the vast disparity in power and wealth between the British colonisers and the Indians, the colonised.

Universally, when conventional means of expression are restricted or suppressed by force, humour, satire, comedy, and trolling fill the vacuum, challenging hegemonic structures in a subtle but more powerful manner. Charlie Chaplin explored this possibility in his 1940 satirical masterpiece, *The Great Dictator*, satirising Hitler’s mannerisms through a character who closely resembled him. More recent examples come from Palestine, where humour serves as a political tool, transforming the daily suffering of Palestinians into a collective form of resistance.

India’s new politics

In a novel shift, the students function as the agents of profanation in India; they deal with the excessive power of the state by weaponising humour, satire, memes and trolls in ways unheard of. India’s political orthodoxy may refuse to acknowledge that Indian democracy is

equally built through such acts of profanation, not solely through the interventions of formal political institutions. This orthodoxy clearly resonates in media debates, which often write off any form of unconventional politics as either liberal denunciation or left adventurism, completely missing the hopeful cues of a new mode of politics to emerge.

Further, the demand for greater accountability and transparency in governance from the students, a “non-party” political entity, has elicited sceptical responses from across the political spectrum. Much of the concern stems from the movement’s “informal” and “non-institutional” character and its “single-issue” oriented politics. Critics argue that such “street politics” alone does not have the power to bring about radical political transformation.

More optimistically, those on the other side argue that it should remain one of the tactics at our disposal when formal opposition struggles to deliver the desired results. The Congress Party, for instance, does not dismiss the potential of the CJP’s mode of politics, even as it detects and warns of an Aam Aadmi element within it. Congress leader Rahul Gandhi himself occasionally adopts an informal style, engaging directly with people through street-level interventions.

Rethinking informal politics

The Jantar Mantar protest has definitely offered a radical component for a rethinking of the ways in which informal politics works in India’s democracy. Expressions of dissent in informal forms are often downplayed as subordinate to “popular consensus”, which is measured chiefly through electoral victory. The question of where to place this protest or what basket suits it – whether as an impromptu student mobilisation driven by anger, a street protest with intensive political content, or a sign of an unconventional style of politics – is therefore a significant one.

LETTERS TO THE EDITOR

Selective call

Those pushing for the full rendition of *Vande Mataram* should also acknowledge that *Jana Gana Mana* is rendered in its prescribed version rather than in its entirety as a longer composition. *Vande Mataram* and *Jana Gana Mana* have different historical and textual

contexts, and the question of how much of either should be sung should be approached consistently. If the ruling party insists on a full rendition of *Vande Mataram*, why should a similar principle not be considered for the national anthem?

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Bengaluru

Visit cancelled

The explanation offered by the Ministry of External Affairs (MEA) on the U.S. leg of Telangana Chief Minister A. Revanth Reddy’s overseas tour appears to leave several questions unanswered. The lack of transparency surrounding an important matter concerning the State’s

external economic and investment interests raises legitimate questions. It would appropriate for the Telangana government and the MEA to place the details in the public domain.

M.M. Nagavender Rao,
Hyderabad

women characters of varied hues and shades was astounding. Her verbal sparring with master performer Sivaji Ganesan in *Uyarntha Manithan*, and her stunning performance opposite Gemini Ganesan in *Iru Kodugal*, where she played a District Collector, are unforgettable. The song, *Maalai Pozhudhin*

Mayakkathile, brought out the best in Sowcar Janaki in *Bagyalakshmi* (1961). In her production, *Kaviya Thalaivi*, her dual portrayal of mother and daughter was equally outstanding.

S.V. Venugopalan,
Chennai

Letters emailed to letters@thehindu.co.in must carry the postal address.